

OFFICE OF THE SECRETARY

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May 21, 2019

The Honorable Brian F. Gasdia
Judge of the Superior Court
County of Los Angeles
12720 Norwalk Boulevard
Norwalk, CA 90650

Re: Adriana Paulina Montiel
CDCR No: WE7095
Case No: VA12738-02
Date of Sentence: April 17, 2007

Dear Honorable Brian Gasdia:

The purpose of this letter is to provide the court with the authority to resentence inmate Adriana Montiel, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Inmate Montiel is commended for remaining disciplinary free since her arrival to California Department of Corrections and Rehabilitation (CDCR) on July 25, 2013. Inmate Montiel is currently assigned as an Institution Firefighter. Her current supervisor notes that inmate Montiel continues to meet all expectations and continues to better herself through college courses and participation in physical fitness activities. Inmate Montiel has taken advantage of self-help and recovery group programs available to her and he has been commended for her participation and facilitation of these groups.

The Honorable Brian G. Gasdia

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Having reviewed the enclosed documentation it appears that inmate McCallum's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Los Angeles County District Attorney's Office
Los Angeles County Public Defender's Office